CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
June 09, 2010
7:00 P.M.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Kelley called the meeting to order at 7:00 p.m. in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Vice Mayor Myra L. Taylor, Commissioner Timothy Holmes and Mayor Joseph L. Kelley. Also in attendance were: City Manager Clarance Patterson, City Attorney Joseph S. Geller and City Clerk Deborah S. Irby. Commissioner Rose Tydus was not in attendance and Commissioner Dorothy Johnson arrived at 7:26 p.m.

3. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

6. APPRÓVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Mayor Kelley pulled agenda item 16-4 from the Consent Agenda (this item to be discussed separately under agenda item 12: Action Items).

It was moved by Commissioner Holmes, seconded by Vice Mayor Taylor to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 3-0 vote.

Vice Mayor Taylor	Yes
Commissioner Tydus	Not present

Commissioner Johnson	Not present
Commissioner Holmes	Yes
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

8. APPROVAL OF MINUTES:

Regular Commission Meeting – 05/26/2010

It was moved by Commissioner Holmes, seconded by Vice Mayor Taylor to approve the minutes of the Regular Commission Meeting of May 26, 2010.

There being no discussion, the motion passed by a 3-0 vote.

Commissioner Johnson	Not present
Commissioner Tydus	Not present
Commissioner Holmes	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

9. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Larry Gardner, Liaison for Miami-Dade County Commissioner Barbara Jordan (District 1) came forward to address any concerns.

Mayor Kelley asked for the tentative date set for demolition of the Magnolia properties.

Mr. Gardner advised that he is aware of a follow up meeting with Habitat for Humanity.

Mayor Kelley said he would like to see if there's any funding available for roofing to assist senior citizens. Initially he'd spoke to Andre Ragin and he would like for Mr. Gardner to follow up on this issue.

Vice Mayor Taylor asked, did Corey Jones of CAA reach his quota in terms of the program offered to Opa-locka residents.

Mr. Gardner advised that Mr. Jones would be coming to the commission meeting for an update on the program.

10. MIAMI-DADE COUNTY FIRE RESCUE DEPARTMENT REPORT:

11. PUBLIC PRESENTATION:

1. **Terence Pinder**
   re: welfare of the city

Terence Pinder of 941 Ali-baba Avenue, Opa-locka, Florida came forward and expressed his concern relating to the stacked up trailers on NW 32nd Avenue and the stacked up salvage vehicles near the Garden Apartments which is a great hazard during hurricane season. Also, he spoke about individuals in the Ingram Park area performing oil change on vehicles. He suggested the city tighten up on addressing these violations.

He continued by speaking in terms of the city's roads, drainage and trash along NW 22nd Avenue.

In preparation for hurricane season, Mayor Kelley indicated that the City Manager stated at the last meeting that the city is on a schedule in terms of cleaning the curves and gutters. He directed the City Manager to provide the Commission with a copy of the schedule.

2. Alvin Burke
re: welfare of the city

Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission for an update on the noise from the trains during the early hours. He also spoke about the resolution on the agenda to waive code enforcement liens and asked, what would the city get for waiving those liens?

Attorney Geller advised that the city has called the issue with the trains to CSX's attention and they've indicated they would get back to him. Therefore, he would expect to have a full report by the next meeting.

Mayor Kelley added that if the city doesn't get any kind of relief then the next step would be to appear before the regulatory body; however, the city is attempting to resolve this issue before it gets that far.

With regards to Code Enforcement liens, Commissioner Holmes said that state and county laws allows municipalities to have a Code Enforcement Board for individuals to come in compliance with violations, and if an individual doesn't comply then the city can issue a fine.

As it related to the liens in the resolution, Mayor Kelley stated that those were dealing with abandoned properties that need to be torn down for rehab housing. If the city can get new properties on the tax roll then that would increase the tax base.

11a. CITIZENS' FORUM:

1. David Horowitz of 2891 SW 69th Court, Miami, Florida, appeared before the City Commission and said that he inherited the property located at 111 Perviz Avenue through foreclosure. Of concern to Mr. Horowitz were the liens issued on the property prior to him acquiring it which total to approximately $11,000.00. He requested that the Commission waive the liens.

Mayor Kelley asked if Mr. Horowitiz had spoke with anyone in the City Manager's Office with regards to this situation.

Commissioner Holmes stated that this was not a new issue and Mr. Finnie, the City Manager during that time was to have taken care of it. This individual has come back again and he brought this matter to the attention of Mr. Patterson. Because this individual allowed the city to utilize his property on Aswan Road to relocate families from the triangle then they should consider waiving the liens on the property. He recalled the Commission passing legislation that no liens are imposed on residents unless the Commission gives that authority and if that didn't happen, then he will sponsor an ordinance for that to take place.

He suggested that the city waive at least 75% of the total amount of liens owed on this property.

After hearing the comments from Commissioner Holmes, Mayor Kelley said he didn't know if Mr. Horowitz had the opportunity to meet with the City Manager because he hadn't heard about this issue in a report form. He directed the City Manager to provide the Commission with a recommendation on this matter and bring it back in resolution format at the next meeting because he didn't have enough information to vote.

Manager Patterson said that the liens on that property are a little over $11,000.00. The owner did meet with Dr. Orji and the liens were reduced to approximately $3,000.00 but the owner never came back to accept that amount.

Mayor Kelley suggested that the City Manager provide a recommendation to the Commission to take action, if necessary.

Commissioner Holmes stated to Mr. Horowitz that if the city called him to reduce the liens to $3,000.00 then he should have accepted that.

Mr. Horowitz informed the Commission that nobody contacted him about the reduction in liens.

Mayor Kelley informed Mr. Horowitz that the City Manager would have Dr. Orji meet with him because the Commission cannot take action at that time; it would have to come back in resolution form. He directed the City Manager to make sure staff meet with Mr. Horowitz and provide the Commission with a report and recommendation before the next meeting.

2. Bobby White, owner of the Jazz Café located in Town Center Building, appeared before the City Commission and spoke relating to the resolution adopted for the upcoming Independence Day Celebration which would honor members of the military. Through the committee meetings they have realized that those members have accepted to attend but in a mass that they are not prepared to deal with; therefore, they are going to rethink and re-plan this celebration because it would be a little to much to handle. He thanked the Commission for their support although they are not able to proceed with the celebration at this time.

Commissioner Holmes reminded Mr. White of his request for financial support from the city.

Mr. White indicated that he will need financial support for this celebration, but first he wants to make sure all the resources are in place and July 4, 2010 is not enough time for the planning of this celebration. He said he would come back to the Commission at a later time for a celebration of the same nature when he has adequate planning and timing.

Mayor Kelley thanked Mr. White for his commitment on this celebration in Opa-locka to honor the veterans.

3. Celeste Dickenson Fitzpatrick of 2523 Opa-locka Boulevard, Opa-locka, Florida, came forward and stated that it would be a great idea to name a street after the honorable Janet Reno and Barack Obama. Secondly, she provided a list of volunteers to assist with Commissioner Johnson's suggestion at the last meeting to beautify the city.

Mayor Kelley informed Ms. Fitzpatrick that Perviz Avenue was co-designated as the Honorable President Barack Obama Street.

4. (Inaudible) representing a group of individuals who use the Ingram Park lake to ride their jet skis on the weekend came forward to ask what they can do to better this situation. He said that Vice Mayor Taylor spoke to them over the weekend and thought it was a good idea that they were trying to have fun with their families while keeping the area clean.

Mayor Kelley said he spoke to Tina earlier that day to ask why weren't they using Ingram Park and she indicated the possible damage to the jet skis because of the rocks. However, that's ideally where they should be because the commissioner has concerns about using the current site. He indicated to Tina that the city is putting a boat ramp pier on the Ingram Park side for individuals to be able to use boats and jet skis although he doesn't know when that would be completed. In the interim, she indicated some things which he related to the City Manager but the City Manager didn't have the opportunity to get back with him to try to resolve the issue. Another concern was that the other individuals on bigger boats who don't live in the city are leaving the trash. He directed the City Manager to resolve this issue until the pier is ready.

Commissioner Holmes said drove through that area many times and even spoke to some of the individuals about his concerns. Although he previously indicated that the city didn't have any rules and regulations concerning jet skis, he was presented with a copy of Section 16-63 of the city's code which states: Water Activities – no person shall swim, ski, dive, surf, boat or fish in any area in the park unless such area is specifically designated for that purpose. He explained that at this time the city doesn't have that area designated for jet skis. In addition, the city's main concern is the safety of everyone.

The group representative stated that they have everything under control and they too are concerned about their safety as well because their children are out there.

Commissioner Holmes suggested that these individuals work with the city until the city can come up with rules and regulations because the Commission doesn't want to see anyone get hurt. He advised that the City Attorney was working on legislation.

Although the City Attorney was working on legislation, Mayor Kelley suggested that the City Manager look at doing something in the interim because he didn't know how long it would take to have the ramp in place.

Manager Patterson stated that the ramp is in the planning process but he directed staff to take it from the planning process to reality. On the other side towards the end, there's a trash dump against the Cuyahoga property; therefore, he is now in the process of receiving bids for a fence on the north side of that property.

Mayor Kelley asked, what can the city do in the interim while they are going through the process to have the ramp in place?

Vice Mayor Taylor stated that she did have the opportunity to go to the family gathering over the weekend. She commended the individuals for the cleanliness, no loud noises and that the music was turned towards the water. She said she was surprised to see that all of the children had on safety vests.

She stated that there's a house on the county side that jet skis are coming out of which is not a part of the gathering on the Opa-locka side. She then asked if the families were in agreement to go on Ingram Park and they indicated yes. She encouraged the City Manager to expedite the ramp for the park.

Being in support of family engagement, Commissioner Johnson said the only issue that no one mentioned was the necessary permit required for outdoor music. Secondly, in that particular area people have been fishing for years and she is in support of that recreational activity. Additionally, if children are engaged in the water activities then the language of the music should be addressed as well.

Mayor Kelley stated that the city is working on the Ingram Park side for a boat ramp which is in the design stage; however, the City Manager will try to work on the issue in the interim.

Commissioner Holmes suggested that the children are protected and kept safe during these jet ski gatherings.

5. Marie Luchard Luvin and Hendrick Duran of 3890 NW 132nd Street, Unit K, Opa-locka, Florida came forward and briefly introduced their new family practice business named Miami Healthcare Clinic / Durable Medical Equipment (DME).

Commissioner Johnson advised that this business will be going before the Planning Council and should not be discussed at that time.

Commissioner Holmes said he met with the business owners and the location for the business may be the wrong zone for that business. However, there was a medical facility

in that same location. He suggested that the owners give a presentation before the Commission. He said if the Commission is saying that these individuals need to go before the Planning Council then he would yield his comments to allow for that process to take place.

In meeting with the business owners, Commissioner Johnson said she found out that they had to come before the Planning Council and that is the reason she didn't want this matter discussed any further. She stated for the record that she personally knows Marie who is a RN at the United Postal Service.

Mayor Kelley asked for clarification if this issue had to go before the city's Planning Council.

Attorney Geller stated that based on what he has heard, there's going to be a site plan approval which would go through the Planning Council. However, if the applicants are seeking a business tax receipt because it's a new business then that's a different matter.

Mayor Kelley suggested that the City Manager get the appropriate department head to speak with the business owners to see what course of action is needed before making additional comments.

6. John Riley of 2963 NW 135th Street, Opa-locka, Florida appeared before the City Commission and stated that in 1997/1998 there was a state grant awarded to the city to build a boat ramp at Ingram Park. He suggested that someone find out what happened to the grant.

Mayor Kelley stated that he didn't know what happened in 1998 but the city is going to deal with the issue now and move forward with a ramp.

12. ACTION ITEMS (items from consent agenda pull list):

16-4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE AND DIRECT THE CITY MANAGER TO PREPARE A STREET AND ROAD REPAIR PLAN AND COST ANALYSIS, WITH IMPLEMENTATION OVER A SPECIFIED TIME; PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Mayor Kelley directed the City Manager make sure that there are time frames and time lines with this plan.

There being no further discussion, the motion passed by 4-0 vote.

Commissioner Tydus	Not present
Commissioner Johnson	Yes
Vice Mayor Taylor	Yes

Commissioner Holmes	Yes
Mayor Kelley	Yes

13. NEW ITEMS:

Clerk Irby informed the Commission of the request to amend the agenda to include the following items:

13-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE AND DIRECT THE CITY MANAGER TO SET ASIDE $50,000.00 TO ASSIST SENIOR CITIZENS WHO ARE IN DESPERATE FINANCIAL NEED OF ROOF REPAIR OR ROOF REPLACEMENT SERVICE FOR THE 2010 HURRICANE SEASON; PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by M.T.*

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to amend the agenda to include item 13-1.

There being no discussion, the motion passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Tydus	Not present
Commissioner Johnson	Yes
Mayor Kelley	Yes

15A2: AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING SECTION VI OF THE CITY'S COMPREHENSIVE MASTER PLAN TO ALLOW FOR PUBLIC SCHOOLS/CHARTER SCHOOLS AS SPECIFIC LAND USE CATERGORIES AND TO ALLOW AN INCREASE IN DENSITY FOR AFFORDABLE HOUSING PROJECTS AND MODERATE DENSITY CATERGORIES IN ACCORDANCE WITH THE 2010 EVALUATION AND APPRAISAL REPORT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY AND CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.A.*

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to amend the agenda to include the above ordinance as item 15A2 (first reading ordinance).

Commissioner Johnson stated that she would like to amend the above ordinance to include private schools in addition to the public and charter schools.

Mayor Kelley stated that the amendment should be addressed once the item comes up for discussion.

There being no further discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Not present
Commissioner Johnson	Yes
Commissioner Holmes	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

13-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE AND DIRECT THE CITY MANAGER TO SET ASIDE $50,000.00 TO ASSIST SENIOR CITIZENS WHO ARE IN DESPERATE FINANCIAL NEED OF ROOF REPAIR OR ROOF REPLACEMENT SERVICE FOR THE 2010 HURRICANE SEASON; PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by M.T.*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to pass the above resolution.

Due to the concern with the city's procurement process, Commissioner Johnson highly suggested that the work is put out for bid with the minimum of three (3) bids being received and that the Commission serve as the selective body.

Vice Mayor Taylor explained that she is not one to add on resolutions unless it's an emergency but she thought this was an emergency to be added on. She stated to the City Manager that she really wants him to stay on this and find the $50,000.00 and what she is looking for is the ten worst roofs, but perhaps the city can do more. She said she would like to work closely with the building official and go to Home Depot, Lowe's to see about partnering with them for equipment and material free of charge.

As far as the bid process is concerned, she said she would work closely with the City Manager and building official. Perhaps the city can also go through the Office of Community Services to find out the ten worst roofs for the seniors.

Although Vice Mayor Taylor may not be aware, Mayor Kelley stated that there are several seniors he was working with trying to get roof repairs of which he had reached out to county agencies. The city is going to need a structured process in order to secure the ten worst roofs which will be challenging; however, there needs to be a mechanism in place. He said he had started with three seniors who are challenged with roof repairs that FEMA did not adequately compensate them but not everybody is a senior. There are individuals who are working hard who just don't have the resources for roof repairs. He agreed that the city must make sure the bid process is structured in a way that it is fair and it comes back to the Commission.

He continued by reiterating that it would be challenging to find the ten worst roofs because the ones he's dealing with now could fall into that category. Should this legislation pass, he directed the City Manager to make sure the city doesn't have the same type of challenges as with the labor workforce program because a lot of roof companies are not doing residential but commercial only. He said he would continue to secure

funding from other sources but if nothing comes out of that perhaps the city can look at the 3 he was already working on as part of the ten.

He further directed the City Manager to bring back to the Commission the structural process which may require working with the City Attorney to craft it in such a way. He made reference to the job initiative because he doesn't want that to happen when they are trying to help the citizens. Once it is crafted with legal sufficiency, it should be brought back to the Commission.

Commissioner Johnson proposed an amendment so that the Housing Authority serves as the selecting committee to provide recommendations. The Commission could identify two houses each.

Vice Mayor Taylor stated that she included the building official because she doesn't know if the Housing Authority has the where for alls to select a roof that is in need of repair; however, the building official would know the condition of the roofs.

Commissioner Johnson agreed with Vice Mayor Taylor up to the point that with the direction giving to the City Manager because the building official reports to the City Manager anyway so that can still happen. The committee will not be doing the selection but will submit recommendations to the Commission. Through the City Manager, Vice Mayor Taylor will still get what she wants because the building official reports directly to the City Manager.

Mayor Kelley added that ultimately the Commission would make the selection.

Vice Mayor Taylor said she was okay with the amendment as long as the building official is involved in the process.

Attorney Geller provided the language for the amendment to the resolution as follows: (This would be included as additional language at the end of Section 2) The City Manager is directed to develop a selection process with the Housing Authority making final recommendations and the City Manager is further directed to propose a competitive procurement process to be presented to the City Commission for final approval.

He advised that the presenting to the Commission would apply to both the selection process with Housing Authority recommendations and the competitive procurement process.

Commissioner Johnson stated that the minutes will reflect the inclusion of the Building & License Director.

Attorney Geller said that the minutes would reflect that but the Commission also certainly made it clear to the City Manager that that's the resource he would look to.

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to amend the resolution with the above stated language provided by the City Attorney.

There being no discussion, the motion on the amendment passed by a 4-0 vote.

Commissioner Tydus	Not present
Commissioner Johnson	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

There being no further discussion, the original motion passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Tydus	Not present
Commissioner Johnson	Yes
Mayor Kelley	Yes

14. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

15. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE A FIVE-YEAR INTERLOCAL AGREEMENT WITH THE MIAMI-DADE COUNTY STORMWATER UTILITY FOR CONTRACT SERVICES PERTAINING TO STORMWATER MANAGEMENT AND MAINTENANCE OF SHARED STORMWATER DRAINAGE SYSTEMS IN AN AMOUNT NOT TO EXCEED THREE HUNDRED FORTY-SIX THOUSAND THREE HUNDRED TWENTY-TWO DOLLARS AND NO CENTS ($346,322.00) ANNUALLY, PAYABLE FROM ACCOUNT 43-538340; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above ordinance on first reading.

Of concern to Commissioner Johnson was the term of agreement because in 2008 it was a two year agreement and the substantial increase in the amount, but she didn't see any difference in the language. She asked, what was the reason for the increase?

She continued by asking for the quality control since 2008 when the county was contracted to perform these services. Additionally, for the two years she didn't see improvement that warrants her approval of such an increase in the amount.

Manager Patterson said since the last time he reported on this item, he has gotten back with Miami-Dade County and they've decided to reduce the number of mechanical harvest from 4 times to 3 times per year and that's where the big difference was. Instead of the annual cost being $431,304.00 it was reduced to $346,322.00.

In going back to the resolution from 2008, Commissioner Johnson stated that at that time the cost was a little over $200,000.00 versus $346,322.00 as reflected in the ordinance which is not a decrease but an increase.

Manager Patterson advised that the increase is actually in one area and that is for the vegetation.

Commissioner Johnson asked, what were the conditions of the monies paid before because the canals are the same and if they are talking about the vegetation being cleaned out, it had not? She said she was not convinced of the substantial increase based on the services provided by the county.

She asked whether the City Manager negotiated the contract or was it negotiated prior to him coming to the city.

Manager Patterson advised that this was something he negotiated and prior to his tenure with the city, it was the higher amount he made reference to.

Commissioner Johnson suggested that the City Manager defer the ordinance to allow her to speak with him on some other issues she had with this item which she preferred not to put on record. She was of the opinion that the amount could be reduced some more because she didn't think the city got its money's worth from previous contracts.

Mayor Kelley asked for the reasoning of going from two years to five years and decreasing the mechanical harvesting? It was his opinion that the city would need more and not less of the mechanical harvesting because that's where the majority of the challenge is in trying to keep the canals clean. Also, he expressed his concerns relating to the proposed length of the contract and trying to get a better rate for these services.

Manager Patterson informed the Commission that there are not a lot of people in the private sector that perform these types of services. The county was performing the services twice a year but was charging the city for four times per year and what was lacking was the supervision on the city's part to make sure they were performing the services they were paid for.

Although that may be true, Mayor Kelley said that his concern is the five year contract versus the two year.

Manager Patterson stated that the three to five years was a wish of the county to make sure they lock the city in sufficiently.

Mayor Kelley said he preferred nothing more than three years at the maximum because who knows what could happen in three years; the city can be in a position to perform the work in-house. He said he would prefer to see a shorter time frame than five years and that would require the City Manager to go back and negotiate with the county.

He suggested that the City Manager defer the ordinance to allow him to negotiate a shorter time frame. In addition to looking at the possibility of increasing the mechanical harvest and decreasing one of the other services.

Commissioner Johnson directed the City Attorney to review the term of the agreement because the previous one had a one year option to continue services into 2011. The language in the new contract should be on target when it relates to the years.

The motion and the seconded on the above ordinance were withdrawn. The ordinance was deferred by the City Manager.

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING SECTION VI OF THE CITY'S COMPREHENSIVE MASTER PLAN TO ALLOW FOR PUBLIC SCHOOLS/CHARTER SCHOOLS AS SPECIFIC LAND USE CATERGORIES AND TO ALLOW AN INCREASE IN DENSITY FOR AFFORDABLE HOUSING PROJECTS AND MODERATE DENSITY CATERGORIES IN ACCORDANCE WITH THE 2010 EVALUATION AND APPRAISAL REPORT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY AND CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.A.*

The above ordinance was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above ordinance on first reading.

Vice Mayor Taylor expressed her concerns relating to increased density for affordable housing as reflected on page 2 of the ordinance. She said she was not in accord with increasing density for affordable housing because the city has done its part with affordable housing and it doesn't have a development of housing that's not affordable.

Attorney Geller stated that he spoke about this ordinance twice: the first time was during a presentation by a particular group which is the Georgia Ayers Apartments proposed as affordable housing and then he mentioned at a previous meeting that it was going to be coming. The city is in the process of amending its comprehensive master plan pursuant to the Evaluation and Appraisal Report (EAR) which is proceeding forward; however, it is not a very quick process. This amendment to the two elements: (1) on the school zone which has to be amended in order for the city to make any amendment because it has not previously been done at all; (2) this is an overlay which says if someone is doing

affordable housing there can be greater density. The process, not the substance of it, has been negotiated between the developer of the Georgia Ayers project, the State of Florida Department of Community Affairs to allow this to go forward and the city with participation from staff but more from the City Attorney. This ordinance is here for no purpose except to allow greater density for affordable housing for the purpose of allowing that project to go forward in a timely fashion because the applicants are apparently in the process of losing funding.

Vice Mayor Taylor said she wasn't keying in on any particular project because she had already made her concern for that particular project; but there is a way for that project to go through. However, at face value, when the Commission adopts an ordinance, this ordinance is not just for a particular project because anybody coming afterwards would use this ordinance to increase density. She said she didn't want this ordinance to be a blueprint or open door for any developer to come in and stick affordable housing anywhere in Opa-locka which is not fair to the city or the citizens.

Attorney Geller agreed that Vice Mayor Taylor's analysis is correct because that's what this ordinance is here for to allow this; however, if that is a concern she has then there's no other purpose for this ordinance then what Vice Mayor Taylor is expressing concern about.

Vice Mayor Taylor said that the ordinance deals with two issues: one being schools and the other increasing density for affordable housing.

Attorney Geller stated that this ordinance would not be amending the school element of the city's comprehensive plan now except as incident to this overlay to allow greater density for affordable housing. The city would allow that school portion to be done upon receipt of the FIU report. The reason this ordinance is here is because that report could take some months before it comes to the Commission. This ordinance would allow this group to move forward now and if the city took out the density issue then they wouldn't be bothering to amend the comp plan now on the schools.

With this ordinance, Vice Mayor Taylor stated that the Commission is creating a law for a particular project. She asked, was that correct?

Attorney Geller replied, yes.

Vice Mayor Taylor stated that several years later this law would mean something to any developer and it would not be just for this particular project because it is allowing for an increase in density for any future developer. Although this law may be for a specific group now, it will be in practice for anybody.

Attorney Geller once again agreed that Vice Mayor Taylor's analysis was correct.

Commissioner Johnson expressed her disappointment with the City Attorney in hearing that this ordinance is being done for a particular project. If an ordinance should happen to pass then she is aware of the rules to rescind. As a former member of the Planning Council, if there's any concern then the department directors should be hearing the

discussion and any project coming in front of the Commission would not match the EAR because the language currently in the law does not match what was already approved by this Commission in 2007. Since it does not match and had to get approved by South Florida Planning Council, this legislation will now match what the Commission has already approved through the master plan and the EAR. The city doesn't have anything on record to match what has already been approved.

Attorney Geller informed the Commission that the site plan was presented to the Planning Council; the Planning Council approved it subject to this ordinance being approved. The site plan itself would have to come back to the Commission if this ordinance is approved on second reading. He agreed with Commissioner Johnson that this would ultimately match up if that was the pleasure of the Commission to go forward.

Commissioner Holmes suggested that the Commission take time to review ordinances and resolutions prior to being presented to the City Clerk for placement on the agenda so all concerns would be addressed which would limit the time on discussion.

Commissioner Johnson proposed an amendment to the above ordinance to include private/public and charter schools.

Attorney Geller read the amendment as requested by Commissioner Johnson into the record which would be included in the title and body of the resolution: Public Schools/Charter Schools/Private Schools.

It was moved by Commissioner Johnson, (gavel relinquished to Vice Mayor Taylor) seconded by Mayor Kelley to amend the above ordinance to include Private Schools.

Commissioner Holmes said that if the amendment requires a 4/5 vote then the ordinance should be deferred, cleaned up and brought back with the change because his vote is "no".

Commissioner Johnson suggested that the Commission allow this ordinance to be deferred and she would bring back a resolution to deal with this issue.

The motion and seconded on the amendment to the ordinance were withdrawn.

Vice Mayor Taylor returned the gavel to Mayor Kelley.

Because it appeared the ordinance dealt with two separate items, Vice Mayor Taylor asked could they be split.

Attorney Geller advised that the two items could be split; however, the more complete answer would be that there is no reason to change the school element of the city's comprehensive plan until they get the FIU report unless they are doing it to allow this increase in density for affordable housing. If the pleasure of the Commission is not to do the increase in density for affordable housing then there's no need to do the school portion at all until the city receives the report from FIU. The Commission cannot do the affordable housing density increase without also doing the school.

Vice Mayor Taylor withdrew her seconded on the motion for the ordinance.

Because the discussion leads to the assumption that the ordinance was not going to pass, Mayor Kelley suggested that the ordinance be deferred.

Attorney Geller stated that if the pleasure of the Commission was that the item be deferred then he would certainly do that. Because he agreed with what Commissioner Holmes said, he would not bring an item on this short notice to the Commission if it had not been very clearly communicated to him by the developer that if they were not able to get this moving at least on first reading that there's a substantial possibility they would lose their funding.

Mayor Kelley passed the gavel to Vice Mayor Taylor to second the motion on the ordinance. In having first reading ordinances, he tends to support them to go for second reading which would allow for citizen input. If the Commission after hearing from the City Manager or City Attorney decides they don't want to support it then they still can do that during second reading and it won't pass. But he has always tried to give that leeway to folks when coming under first reading because they don't have the option for input during first reading.

Commissioner Johnson explained that this particular project is time sensitive and all the Commission is doing with this ordinance is matching what was already approved in 2007.

There being no further discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Mayor Kelley	Yes
Vice Mayor Taylor	Yes

Commissioner Holmes explained his reason for changing his vote on first reading to allow the applicants the opportunity so that they won't lose their funding. Hopefully when this ordinance comes back for second reading, everything is in order so that the Commission doesn't have to spend a lot of time trying to resolve issues.

Vice Mayor Taylor returned the gavel to Mayor Kelley.

B. SECOND READING/PUBLIC HEARING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING ORDINANCE 09-18, THE GENERAL FUND BUDGET FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2009, AND ENDING SEPTEMBER 30, 2010; ADJUSTING REVENUES AND EXPENDITURES AS REFLECTED IN EXHIBIT "A"; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR

SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE (first reading held on May 12, 2010). *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above ordinance.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING ORDINANCE 09-19, THE PROPRIETARY AND SPECIAL REVENUE FUNDS BUDGET FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2009, AND ENDING SEPTEMBER 30, 2010; ADJUSTING REVENUES AND EXPENDITURES AS REFLECTED IN EXHIBIT "A", REFLECTING CHANGES IN REVENUE SOURCE AS FOLLOWS: CAPITAL PROJECTS (FUND 320) BUDGET, REDUCTION OF TWENTY-FIVE THOUSAND DOLLARS ($25,000.00); CRIME PREVENTION (FUND 172) BUDGET, INCREASE OF FOURTEEN THOUSAND FIVE HUNDRED DOLLARS ($14,500.00); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE (first reading held on May 12, 2010). *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above ordinance.

Commissioner Johnson asked for an explanation in terms of the reserve fund and contingency fund reflected in the amount of $30,000.00.

Faye Douglas, Budget Administrator for the City of Opa-locka came forward and explained that following the comments from the Commission during the budget amendment workshop the reserve will remain the same at $500,000.00. The contingencies in the City Manager's Office were decreased by $35,000.00 but it is remaining at $45,000.00.

Commissioner Johnson stated for the record that in the reserve the Commission adopted an increase which is now reflected as $565,000.00.

Ms. Douglas said that the Commission adopted $500,000.00 and it is remaining at $500,000.00.

Commissioner Johnson asked for an explanation on the amendment reflected as 2009-2010 Exhibit "A".

Ms. Douglas explained that in the first budget amendment presented the city was reducing the General Fund Reserve by $65,000.00; however, the $65,000.00 was added back and the reserve will now remain at $500,000.00.

Commissioner Johnson referred Ms. Douglas to the page she was looking at which indicated that the reserve was $565,000.00.

After reviewing the document Commissioner Johnson was making reference to, Ms. Douglas explained that it reflects the reserve in the amount of $565,000.00 in the General Fund; however, the General Fund Operating Reserve is $500,000.00 and the reserve for sick and annual leave is $65,000.00 so when you combine both the total reserve is $565,000.00.

Commissioner Johnson expressed her concern relating to the sick and annual leave being included in the reserve funds.

Ms. Douglas explained that the financial integrity ordinance indicates that the city must have at least $500,000.00 in the general fund reserve, $ 16,500.00 in the water & sewer reserve fund and at least $65,000.00 in sick/annual leave in the general fund. Therefore, there are two separate reserves that the financial integrity ordinance allows for.

Commissioner Johnson directed the City Attorney to bring back a resolution amending her previous resolution regarding the General Fund Reserve to reflect $565,000.00 as oppose to $500,000.00.

There being no further discussion, the motion passed by a 4-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

C. RESOLUTION/PUBLIC HEARING:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING, SETTING FORTH AND SUBMITTING TO THE ELECTORATE PROPOSED CHARTER AMENDMENTS, AMENDING THE

CHARTER OF THE CITY OF OPA-LOCKA, FLORIDA TO: 1) SET COMPENSATION FOR THE MAYOR AND CITY COMMISSIONERS, INCLUDING DEFERRED COMPENSATION; 2) CHANGE THE NAME OF THE PERSONNEL BOARD TO THE "CIVIL SERVICE BOARD"; 3) CHANGE THE NAME OF THE PERSONNEL DEPARTMENT TO THE "HUMAN RESOURCES DEPARTMENT"; 4) CHANGE THE TERM UNCLASSIFIED SERVICE EMPLOYEE TO "UNCLASSIFIED UNION EMPLOYEE"; CALLING AND PROVIDING FOR A REFERENDUM AT THE PRIMARY ELECTION TO BE HELD ON AUGUST 24, 2010 FOR THE PURPOSE OF SUBMITTING SAID CHARTER AMENDMENTS TO THE ELECTORATE AT SAID REFERENDUM; FURTHER DIRECTING THE CITY CLERK TO CAUSE A CERTIFIED COPY OF THE HEREIN RESOLUTION TO BE DELIVERED TO THE SUPERVISOR OF ELECTIONS OF MIAMI-DADE COUNTY, FLORIDA; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDNG FOR AN EFFECTIVE DATE (first public hearing held on May 26, 2010). *Sponsored by T.H.*

The above resolution was read by title by Attorney Geller.

Mayor Kelley opened the floor for a public hearing.

John Riley of 2963 NW 135th Street, Opa-locka, Florida, came forward and suggested that question #1 be changed to question #4 on the ballot. In addition, he asked that the Commission consider changing the language on question #4 as follows: Shall Section 185 of the Charter be amended that Union Employees remain Classified Employees.

Commissioner Holmes asked Attorney Geller whether he had a problem with that change.

Attorney Geller replied, no. He said that the technical language would be as follows: Shall subparagraph 9 be deleted?

Mr. Riley agreed that would work as well.

Attorney Geller added that he could phrase it with both to say that: Shall the Charter be amended to delete subparagraph 9 of Section 185 such that and then the language that Mr. Riley indicated.

Since this is second reading, Mayor Kelley asked for a legal opinion in terms of changing the language.

Attorney Geller advised that it was permissible because this is a resolution not an ordinance. Secondly, what Mr. Riley indicated was the intent as he received it from the Charter Review Board; Mr. Riley is simply clarifying it and it is not a material change. For both of those reasons this change can be made and other than adding the language he had no difficulties with either of the suggestions Mr. Riley made.

Commissioner Holmes stated that he would go along with whichever language the City Attorney thinks is best.

Attorney Geller stated that the amendment to the existing language of question 4 would be changed to state: Shall Section 185 be amended to delete subparagraph 9 such that Union Employees will remain Classified Employees. The second change in the resolution that Mr. Riley is suggestion is to make question 4 question 1 and then take the question about compensation including deferred compensation and make that question 4. This should be done as two separate amendments.

The first amendment to the resolution is as follows: Shall Section 185 be amended to delete subparagraph 9 such that Union Employees will remain Classified Employees.

It was moved by Commissioner Holmes, seconded by Commission Johnson to amend the resolution to reflect the above stated language regarding Section 185.

There being no further discussion, the motion on the first amendment passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Tydus	Not present
Commissioner Johnson	Yes
Mayor Kelley	Yes

The second amendment is what is shown as question 1 henceforth be on the ballot as question 4 and what is shown as question 4 henceforth be on ballot as question 1.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the second amendment to the resolution by switching questions 1 and 4 as stated above.

There being no further discussion, the motion on the second amendment passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

There being no further persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above resolution.

There being no discussion, the motion passed by a 3-1 vote.

Commissioner Tydus	Not present
Commissioner Johnson	Yes
Vice Mayor Taylor	Yes

Commissioner Holmes	Yes
Mayor Kelley	No

16. ADMINISTRATION:

CONSENT AGENDA:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO REFINANCE THE CITY'S SERIES 1994 CAPITAL IMPROVEMENT REVENUE REFUNDING BONDS AS SERIES 2010 BONDS AND TO ISSUE SERIES 2010A BONDS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA – LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO CREATE A TEMPORARY SERVICE WORKFORCE WORKING WITH THE HUMAN RESOURCES DEPARTMENT; PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO NEGOTIATE AN AGREEMENT TO WORK TOGETHER WITH THE OPA-LOCKA COMMUNITY DEVELOPMENT CORP. (CDC); PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO CONSULT WITH THE NATIONAL LEAGUE OF CITIES AND HYETT PALMA INC. ABOUT THE SERVICES OF THE AMERICA DOWNTOWN PROGRAM TO COME UP WITH A PLAN TO REVITALIZE OPA-LOCKA BUSINESS DISTRICT, AND TO ISSUE A REQUEST FOR PROPOSAL (RFP) OR REQUEST FOR QUALIFICATION (RFQ) TO CONSIDER OTHER PROVIDERS OF SIMILAR SERVICES; PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

6. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DIRECTING AND AUTHORIZING THE CITY MANAGER TO SUBMIT A PLAN TO EITHER PURCHASE TOWN CENTER OR TO BUILD A CITY HALL; PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

7. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE WAIVER OF CODE ENFORCEMENT LIENS AND CITATIONS ON 2060 LINCOLN AVENUE, 2070 LINCOLN AVENUE AND 15050 DUVAL STREET IN THE OUTSTANDING AMOUNT OF $42,158.06; PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

8. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO ENTER INTO AN INTER-LOCAL AGREEMENT WITH MIAMI-DADE COLLEGE, SCHOOL OF JUSTICE, ASSESSEMENT CENTER FOR THE SERGEANT PROMOTIONAL EXAMINATION; PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

9. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO PROVIDE PAYMENT TO FIDELITY FINANCIAL SERVICES, L.C. IN AN AMOUNT NOT TO EXCEED TEN THOUSAND, NINE HUNDRED FIFTEEN DOLLARS ($10,915.00) FOR CONSULTING SERVICES; PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above consent agenda resolutions were read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the consent agenda resolutions.

The motion passed by a 3-0 vote.

Vice Mayor Taylor	Yes
Commissioner Tydus	Not present
Commissioner Holmes	Out of room
Commissioner Johnson	Yes
Mayor Kelley	Yes

A. CITY MANAGER'S REPORT:

Manager Patterson provided the Commission with a report on the Gun Bounty Program; the outcome of the meeting with Glen Gore regarding parking in the State Building lot; demolition of structure at Villa Francine; and the completion of Segal Park. He requested that the Commission provide him with a date for the Ribbon Cutting at Segal Park.

With regards to the City Manager's response in the booklet provided to the Commission relating to the retention pond at the Garden Apartments, Vice Mayor Taylor suggested that the spraying for the mosquitoes take place immediately.

She continued by asking was the plate on the monument in the Butterfly Garden replaced to reflect the Mayor & Commissioners names.

Manager Patterson stated that the plate was in his office.

Vice Mayor Taylor directed the City Manager to make sure the lot next to Segal Park is cut.

Mayor Kelley stated that the City Manager was to provide an update as to what is going on with that property because it is an eyesore to the area. A while back he even

mentioned to the City Manager to look into acquiring that property to extend Segal Park but that didn't work out; however, the grass is continuing to grow and the contractor always cuts the middle but not the outer part.

Vice Mayor Taylor said there was an updated study done a while back of a special taxing district while Mr. Daughtrey was the City Manager. She directed the City Manager to do research on special taxing district for high volume commercial areas with the money going to road improvements because the trucks are tearing up the roads especially in the commercial areas.

She continued by saying that under the previous manager there was talk about getting restoration money for City Hall and she would like an update.

Manager Patterson said that the city applied for the grant but wasn't awarded.

Vice Mayor Taylor suggested that the city continue to apply for grants to restore City Hall.

She continued by directing the City Manager to look into whether the city could utilize transportation money to get bus shelters; clean the streets east of NW 27th Avenue; and spray the Cuyahoga area and then see about clearing out that property perhaps utilizing the two companies within the city that have the necessary equipment who may provide the first cut free of charge.

As it relates to the Cuyahoga property, Mayor Kelley suggested that the City Manager speak to Community Development because he had a meeting with Mrs. Delco reference that property and Brownfield dollars so the city doesn't have to spend any money it doesn't have to. He suggested that the City Manager keep the Commission informed as to which route he will take to clear the property after receiving a report on that meeting because this property has been an eyesore for too long.

Commissioner Johnson commended the City Manager and staff for the Hurricane Preparedness Plan; however, she would like to receive a suspense date for the disaster plan which has been pending for a while. In addition, she would like to bring some closure on the Welcome Kit prior to summer break.

She continued by saying that there's a street sweeper in Miami Gardens and she was told that the city would have to do a inter agent agreement to utilize their equipment. She directed the City Manager to get in touch with whoever is in charge.

Since mentioning her concerns at the last meeting with regards to the maintenance at SR9, she said she would have thought there would be some progress by now. Although she seen individuals out there cleaning, they must have just mowed the lawn because they didn't pull any weeds. She said that SR 9 needs to be cleaned before the next commission meeting.

She further expressed her concerns relating to the condition and the quality of life at the 22nd Avenue Apartments. She said there are a lot of violations but the residents don't

want to complain because there isn't anywhere for them to go. She directed the City Manager to bring back a report as to what can be done and what would be done.

Commissioner Johnson stated that during the tour with the City Manager she spoke to one of the individuals that staff addressed about the violations in terms of construction but what was surprising to her was that the man asked her if he needed to give her something in order to continue his work. However, she didn't know what he meant by that; but he also stated that he continued to do the work because a city employee told him it was okay. She said she is concerned that a stop work order is placed on a project and then an employee comes and allows the contractor to continue the work.

She continued by providing a brief update of the tour and said she would be interested in doing an 8 hour tour of the city in addition to getting the Crime Watch members involved to assist in identifying problem areas.

She further stated that she is most appreciative of the reply from staff in terms of fixing some of the quick visible problems throughout the city.

Commissioner Holmes made reference to a lien statement he had in front of him and said that the city just recently had to pay a lawsuit for approximately $200,000.00 on fees the city charged on people's water bill. In terms of the lien statement, he expressed concerns with the various fees charged in addition to the actual lien balance which included processing fee, 7% interest rate fee, and a release fee for $35.00. He was of the opinion that all the additional fees were unnecessary. The City Commission should decide whether a lien should be placed or the City Manager should settle the matter. He said he had given this same lien statement to the City Manager on several occasions and he would like him to take care of it in-house. If not then he directed the City Attorney to prepare a resolution.

Manager Patterson stated that he would do exactly what Commissioner Holmes has directed him to do; however, he has not found anything in the code giving him the authority to remove any liens. It needs to come to the Commission to approve and he would have this issue on the next agenda.

Although there's nothing in the code, Commissioner Holmes said that the City Manager is responsible for the day to day operations and this could be handled in house.

Commissioner Holmes asked, when would the AFSCME contract be brought back to the Commission?

Manager Patterson advised that he is waiting on AFSCME to get back with the city.

Commissioner Holmes said he would wait for the City Manager's response on the union issue.

He said he was still receiving many complaints in terms of the high water bills and he directed on several occasions that the City Manager look into the possibility of increasing

the consumption by an additional 2,000 gallons while maintaining the current rate for residential. However, as of this date nothing has been presented to the Commission.

Manager Patterson informed Commissioner Holmes that he would receive a report on his request in terms of the high water bills at the next meeting.

Commissioner Holmes asked for an update on the five police vehicles because he had not seen a resolution and/or purchase order. He said that the current police vehicles are in poor condition. He directed the City Manager to move forward with the purchasing of the police cars.

Manager Patterson said the city just identified monies to utilize to purchase the police vehicles.

Commissioner Holmes recommended that the city don't move so fast in placing a lien on residential properties without bringing it to the Commission. He said he was not talking about lien for non payment of water but the liens placed for violations. He suggested that the City Manager look into the 7% interest rate on liens.

He provided the City Manager with a copy of section 16-63 of the City of Opa-locka Code of Ordinances which dealt with water activities and addressed the jet skis.

He further stated that he received complaints relating to the bad treatment by police officers on the homeless and they should be treated like any other person.

Commissioner Holmes directed the City Manager to look into the possibility of assisting the VFW by providing them with an American and State flag.

He continued by expressing his concerns with the opening of Segal Park, the condition of Historic City Hall and finding a way to make the necessary repairs.

He further provided the City Attorney for his review a copy of the telecommunication tower ordinances adopted by the City Commission in 1997 although those ordinances were repealed.

He announced the passing of a city resident and his half brother.

Mayor Kelley offered his condolences on the passing of Commissioner Holmes' half brother. In addition, he announced the passing of longtime residents Ezekiel Kendrick and Mrs. Wells.

He went on to say that the resolutions passed were very critical: one dealt with the temporary workforce which allows for the hiring of temporary individuals and when jobs do come up to hire city residents to fill those positions. The other item was with the CDC to help the city in development of abandoned properties. He suggested that the City Manager stay on top of all these items and keep the Commission abreast.

B. ACCOUNTS PAYABLE:

Carol Conol, Assistant Finance Director for the City of Opa-locka came forward and informed the Commission of the finance reports provided to them as a part of the packet from the City Manager's Office.

She advised that the city has $565,000.00 set aside for reserves.

Vice Mayor Taylor asked, in terms of the reserve fund, would the amount stay at $565,000.00 or will it fluctuate?

Faye Douglas, Budget Administrator stated that the General Fund reserve is $500,000.00 of which $300,000.00 can be used only with City Commission approval. The sick and annual leave is $65,000.00 and that remains at $65,000.00.

17. OFFICIAL BOARD REPORTS:

18. CITY ATTORNEY'S REPORT:

Attorney Geller apologized to the Commission for brining an item to them as an add-on without advance notice. However, if it wasn't for two factors: 1) the applicant was at risk of losing the funds and secondly they were originally suppose to deliver it to the city last week but they had late negotiations with the Department of Community Affairs.

He advised that the PBA negotiations were rescheduled to Monday, June 14, 2010 in the afternoon and he hopes to reach most of a deal if not a complete deal.

With regards to the conversations relating to liens, he said he hopes to present to the Commission by the next meeting a new ordinance on liens that would allow the city in this era where there's so many foreclosures going forward to be able to recover a better percentage. He said he is also working on a procedure where the City Attorney's Office can assist in collecting these liens; however, with regards to Commissioner Holmes comments, he doesn't want to do anything that's going to be adverse particularly to homeowners living and residing in their homes that may be challenged. Now investment property, that's another story and the city wants to become a bit more aggressive with those.

He continued by saying that he is working with Bill Kramer on the telecom issue; however, there are some pending requests to modify telecom towers and they've heard from counsel for those telecom operators. The issue is with the new state law which passed in 2005 and modified in 2007 which supersedes what the city had done in 1999 and is very restrictive on municipalities as far what can be done. The feds have also weighed in on this and there's a new federal law so he had extensive conversations with counsel and he is Mr. Kramer is working on this. The city cannot do everything they would like to but he is going to be sure to do everything the law permits. He said what the city can do to protect residents in residential neighborhoods is going to be considerable greater than what is permitted in residential or industrial districts.

He further stated that the Commission talked about CSX but he was also asked by Commissioner Johnson to look into the airport noise issue about planes taking off late and he did speak with the director of the airport operations who is aware of the concern and has promised to get back to him.

Attorney Geller reported that he is working with the City Manager on Villa Francine to make sure the city is protected and it does look like the City Manager has arranged something that would give some relief to the residents.

He continued by saying that he'd been speaking with the contractors for Sherbondy Park and they are full speed ahead working on underground and foundation issues. Based on conversations at length, he anticipates going forth with the redesign and this item should be on the next meeting agenda.

He further advised that at the next meeting he will have proposed amendments to the Red Light Ordinance because the state did adopt something but it is not everything the city was hoping for before. The bottom line is that there will be revenue stream to the city and there will be increased enforcement.

He noted that per Commissioner Johnson he would get that amendment for the reserve fund on the next meeting agenda.

Commissioner Johnson asked for an update on the CSX in terms of the maintenance of the railroads.

Attorney Geller said that the City Manager was talking to CSX about the maintenance issue and while he is hopeful of being able to reach an agreement with them on the maintenance they've also indicated that they need to get the noise issue addressed as well. This could impact the city's ability to reach an agreement. CSX is anxious for a development agreement as well as the city is.

Commissioner Johnson directed the City Attorney and City Manager to follow up on the CSX issue because the Commission passed a resolution for maintenance.

She continued by directing the City Attorney to work closely with the City Manager on the exterior appearance of businesses in the city due to the lack of upkeep (i.e. paint, lawn, etc.) and there is an ordinance that addresses this issue. Over the weekend it was brought to her attention that there is a substantial reconnection fee to turn water back on which she doesn't remember voting on. She directed the City Manager to address this issue in his next report to the Commission.

She further suggested that the City Manager provide the Commission with the information packet one week prior to the meeting to allow for review. In addition to that, she would like the opportunity to discuss those issues with the City Manager and City Attorney prior to the commission meeting.

Mayor Kelley stated to the City Manager that although he failed to give an update on the city's website, it is up and running and a little friendlier. The Commission received

recommendations as to how they were going to go forth and market that with some suggestions. He spoke about the problems with his city cell phone and having missed calls, missed emails and the phone shutting off.

In terms of the Town Hall Meetings with Representative Oscar Braynon scheduled for Wednesday, June 16, 2010 he said he is sure it is on but he wants to make sure the city doesn't miss the Town Hall Meetings with Senator Wilson because he didn't see that on the city's cable channel.

He pointed out that the city did receive the property value assessment and it is at 15.6% or 1.1 Million Dollars. He directed the City Manager to schedule a workshop in July to submit his suggestions / recommendations prior to the budget process in terms of the city's reduction in revenues based on the tax roll.

19. CITY CLERK'S REPORT:

Clerk Irby reported that she sent out a memorandum to the Commission as a reminder of the financial disclosure forms and outside employment which are due on July 1, 2010.

She stated that the city must find a new precinct to replace New Fellowship Church which is no longer available. The new precinct would be the church on Sharar Avenue and Perviz Avenue.

She further stated that she is working on the Board/Committee Banquet scheduled for June 25, 2010.

Since Segal Park is now complete, she suggested having the Back to School event at Segal Park.

Mayor Kelley asked if there was an update on the Census.

Clerk Irby stated that she would check but most likely there won't be any new information until November or December.

Commissioner Holmes directed the City Clerk to check with the cities of Hallandale and Hollywood to see if they have a ordinance relating to CSX specifically with the noise from the trains. If so, he asked that the City Clerk forward a copy to the Commission.

20. MAYOR/COMMISSION REPORT:

Commissioner Johnson thanked the Fire Department and Police Department for their great response to a fire at her home.

She reported that her organization's summer camp would be on the 2nd Floor at Town Center starting on Monday, June 14, 2010 in Excel Academy. In addition to that through her organization she is working with Miami Job Corps and she has an opportunity to paint houses.

Vice Mayor Taylor thanked staff for doing a great job in what they do in making the city great. She reported that she received a letter from Senator Frederica Wilson in terms of the federal health care reform legislation and the closest they will get to the city would be on June 16, 2010 at 7:00p.m. in the Lou Rawls Performing Arts in Florida Memorial University.

She announced the Father's Day Celebration on Friday, June 18, 2010 at 11:00 a.m. on the 2nd Floor at Town Center One.

Commissioner Holmes provided some words of advice to City of Opa-locka staff pertaining to their jobs performance.

Although Vice Mayor Taylor mentioned the meeting hosted by Senator Wilson on June 16, 2010, Mayor Kelley encouraged the city's residents to attend the Town Hall Meeting on the 2nd Floor at Town Center on June 16, 2010 @ 6:30 p.m. because Representative Braynon will hold a legislative summary town hall forum and talking about what happened in the session, the census, going green, hurricane preparation and health care.

He reported that he met with the City Manager because there was so much said about the homeless challenges and finding out through the league of the dollars available to assist. Because the City Manager did not mention it, he is not sure where he is with the process in working the Police Department, CET and those impacted to assist those residents who are homeless. This goes without saying because even if they are homeless, they are still residents and citizens and must be treated with dignity.

He further reported meeting with Mrs. Delco of the South Florida Regional Planning Council and a couple of things discussed in addition to some progress on Cuyahoga was funding available for small businesses. He said he was hoping to have that finalized to development to assist the small businesses here in the city with funding opportunities and resources to help their business grow and become better.

Mayor Kelley expressed his excitement with the legislation adopted for the potential of the Downtown District and moving forward. One of the things passed in this legislative year was the incentive for businesses to come into the city through Senate Bill 1752. This would be a great opportunity to encourage businesses to come into the city through that incentive program and he would hope the city would take advantage of that.

He announced that he was confirmed as the 3rd Vice President for the Miami-Dade County League of Cities during its last meeting.

Lastly, he encouraged the City Manager to keep the Commission informed and communicate with them so they can work together to make the city move forward to be the best it can be.

Commissioner Johnson stated that it was brought to her attention that there was county money given to an organization that has been in the city for many years working with small businesses. She directed the City Manager to find out the name of that organization,

what they are doing for the businesses in Opa-locka and bring them in front of the Commission.

21. OFFICIAL BOARD APPOINTMENTS:

22. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to adjourn the meeting at 10:11 p.m.

MAYOR

ATTEST:

CITY CLERK